The Election Commission (Conditions of Service of Election Commissioners and Transaction of Business) Act, 1991 contains the following provisions:

1. The chief election commissioner and the two other election commissioners shall have equal powers and receive equal salary, allowances and other perquisites, which are similar to those of a judge of the Supreme Court.[3]

2. In case of difference of opinion amongst the Chief Election Commissioner and/or two other election commissioners, the matter is decided by the Commission by majority.

3. They hold office for a term of six years or until they attain the age of 65 years, whichever is earlier. They can also resign at any time by writing to the President.

INDEPENDENCE

Article 324 of the Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of the Election Commission:

1. The chief election commissioner is provided with the security of tenure. He/she cannot be removed from his/her office except in same manner and on the same grounds as a judge of the Supreme Court. In other words, he/she can be removed by the President on the basis of a resolution passed to that effect by both the Houses of Parliament with special majority, either on the ground of proved misbehaviour or incapacity. Thus, he/she does not hold his/her office till the pleasure of the President, though they are appointed by him/her.

2. The service conditions of the chief election commissioner cannot be varied to his/her disadvantage after his/her appointment.

3. Any other election commissioner or a regional commissioner cannot be removed from office except on the recommendation of the chief election commissioner. This means that the protection (security of tenure) available to the Chief Election Commissioner is not available to the other election commissioners.

Though the constitution has sought to safeguard and ensure the independence and impartiality of the Election Commission, some flaws can be noted, viz.,

1. The Constitution has not prescribed the qualifications (legal, educational, administrative or judicial) of the members of the Election Commission.

2. The Constitution has not specified the term of the members of the Election Commission.

3. The Constitution has not debarred the retiring election commissioners from any further appointment by the government.

In *Anoop Baranwal* case[3a] (2023), the Supreme Court gave the following directions to ensure the independence and neutrality of the Election Commission, free from all external political and executive interference:

1. It declared that the appointment of the Chief Election Commissioner and the other Election Commissioners shall be made on the recommendations of a three-member committee consisting of the following: